

PLJ 2021 Lahore 191

Present: JAWAD HASSAN, J.

MUHAMMAD RASHEED, etc.--Petitioners

versus

GOVERNMENT OF THE PUNJAB through Secretary Health Lahore and 4 others--
Respondents

W.P. No. 68928 of 2017, decided on 24.11.2020.

Constitution of Pakistan, 1973--

---Art. 199--Appointment as ward boys ward servants on daily wages--Termination from service--Redressal of grievance--Direction to--Counsel for Petitioners states that Petitioners will be satisfied and will not press this Petition if direction be issued to Respondent No. 4/Medical Superintendent, DHQ, Sheikhpura to redress their grievance expeditiously in accordance with law--Law Officer has no objection to same--A certified copy of this Petition along with all annexures be transmitted to Respondent No. 2, who shall, 'decide same strictly in accordance with law and judgments mentioned above, rules, regulations and policies applicable thereto, after providing proper hearing to all concerned including Petitioners, expeditiously within a period of one (01) month from receipt of certified copy of this order--Petition was disposed of.

[Pp. 192 & 193] A & B

2019 SCMR 233 ref.

M/s. Ghazanfar Ali Bhatti and Ghulam Abbas Khan Balouch, Advocates for Petitioners.

Barrister Hassan Khalid Ranjha, Assistant Advocate-General with Safdar Abdul Qayyum, Law Officer of Respondents No. 3 and 4.

Date of hearing: 24.11.2020.

JUDGMENT

Through this writ Petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") the Petitioners have sought directions to the Respondent-Department to reinstate them into service with all back benefits and also to regularize them in accordance with law.

2. Learned counsel for the Petitioners submits, that the Petitioners were appointed as Ward Boy(s)/Ward Servants since 2013 on daily wages by the Respondent No. 2 and subsequently terminated from service on 06.06.2017 without giving any notice and proper hearing. Learned counsel relies upon the judgments cited as "Board of Intermediate and Secondary Education, D.G. Khan and another v. Muhammad Altaf and others" (2018 SCMR 325), "Board of Intermediate and Secondary Education, Faisalabad through Chairman and, others v. TANVEER SAJID and others" (2018 SCMR 1405) and "Board of Intermediate and Secondary Education, Multan through Chairman and another v. Muhammad Sajid and others" (2019 SCMR 233).
3. Learned Law Officer at the outset objected qua maintainability of this Petition being premature.
4. In response thereof, learned counsel for the Petitioners states that the Petitioners will be satisfied and will not press this Petition if direction be issued to the Respondent No.

4/Medical Superintendent, DHQ, Sheikhpura to redress their grievance expeditiously in accordance with law. Learned Law Officer has no objection to the same.

5. Let a certified copy of this Petition along with all the annexures be transmitted to the Respondent No. 2, who shall, decide the same strictly in accordance with law and the judgments mentioned above, rules, regulations and policies applicable thereto, after providing proper hearing to all the concerned including the Petitioners, expeditiously within a period of one (01) month from the receipt of certified copy of this order. The Petitioners along with certified copy of this order shall approach the Respondent No. 4 on 01.12.2020 at 11:00 a.m.

6. Disposed of accordingly.

(Y.A.) Petition disposed of